

Dileep Kumar v. State of U.P. — pending clause 6.5 bill-correction application directed to be decided

Allahabad High Court · Division Bench · 11 January 2016 · Writ-C No. 62 of 2016 · **Writ disposed; competent authority to decide pending 6.5 bill-correction application within three weeks.**

HEADNOTE

Where a consumer's application for correction of an electricity bill under clause 6.5 of the U.P. Electricity Supply Code, 2005 was already pending, the High Court disposed of the writ without examining the bill on merits and directed the competent authority to decide that application within three weeks of production of a certified copy of the order.

FACTUAL SUMMARY

Dileep Kumar petitioned the Allahabad High Court seeking correction of his electricity bill. He had already applied to the competent authority under paragraph 6.5 of the Electricity Supply Code, 2005, and that application remained pending. A Division Bench heard the parties and, without going into the merits of the bill, disposed of the writ by directing the authority to decide the pending application within three weeks of production of a certified copy.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

pending billing-objection application

HOLDING

A writ seeking correction of an electricity bill is disposed of without a merits determination where a clause 6.5 application is already pending; the competent authority is directed to decide that application within a fixed time. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE ELECTRICITY BILL AND THE CLAUSE 6.5 CORRECTION APPLICATION

Left to the competent authority to decide the pending application. ¶ 1